

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #02	CCRB Case #: 201402199	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 02/15/2014 7:42 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/15/2015	Precinct: 81
Date/Time CV Reported Thu, 03/06/2014 4:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/06/2014 4:01 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. CPT Thomas Passolo	00000	924312	081 PCT
2. POM Andrew Yurkiw	13610	952364	081 PCT
3. POM Joseph Solomito	14389	952258	081 PCT
4. An officer			081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Amber Lagrandier	05373	940352	081 PCT
2. POM Alex Molina	20085	944817	081 PCT
3. LT Isa Abbassi	00000	918669	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . CPT Thomas Passolo	Abuse: Lt. Thomas Passolo entered and searched § 87(2)(b) in Brooklyn.	A . Substantiated
B . CPT Thomas Passolo	Abuse: Lt. Thomas Passolo damaged § 87(2)(b) property.	B . Substantiated
C . POM Andrew Yurkiw	Abuse: PO Andrew Yurkiw drew his gun.	C . Unsubstantiated
D . POM Joseph Solomito	Abuse: PO Joseph Solomito drew his gun.	D . Unsubstantiated
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Exonerated
F . POM Andrew Yurkiw	Abuse: PO Andrew Yurkiw did not obtain medical treatment for § 87(2)(b)	F . Unsubstantiated
G . POM Joseph Solomito	Abuse: PO Joseph Solomito did not obtain medical treatment for § 87(2)(b)	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On March 6, 2014, § 87(2)(b) filed this complaint with the CCRB via telephone (encl. 4A-B).

On February 15, 2014, at approximately 7:42 p.m., officers responded to § 87(2)(b) apartment, located at § 87(2)(b) in Brooklyn, in regards to a 911 call. The following allegations resulted:

Allegation A – Abuse of Authority: Lt. Thomas Passolo entered and searched § 87(2)(b) Apt. 2B in Brooklyn.

Allegation B – Abuse of Authority: Lt. Thomas Passolo damaged § 87(2)(b) property.

§ 87(2)(g)

it is recommended that Allegations A and B be closed as substantiated.

Allegation C – Abuse of Authority: PO Andrew Yurkiw drew his gun.

Allegation D – Abuse of Authority: PO Joseph Solomito drew his gun.

§ 87(2)(g)

it is recommended that Allegations C and D be closed as unsubstantiated.

Allegation E – Force: An officer used physical force against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that Allegation E be closed as exonerated.

Allegation F – Abuse of Authority: PO Andrew Yurkiw did not obtain medical treatment for § 87(2)(b)

Allegation G – Abuse of Authority: PO Joseph Solomito did not obtain medical treatment for § 87(2)(b)

§ 87(2)(g)

it is recommended that Allegations F and G be closed as unsubstantiated.

§ 87(4-b) § 87(2)(g)

This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a black man who § 87(2)(b) has brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

On March 6, 2014, § 87(2)(b) provided a statement with the CCRB via telephone (encl. 4A-B). On March 20, 2014, § 87(2)(b) provided a verified statement at the CCRB (encl. 5A-F). His statements were consistent except where noted below.

On February 15, 2014, at 7:42 p.m., § 87(2)(b) was in his apartment at § 87(2)(b) in Brooklyn. § 87(2)(b) had argued with § 87(2)(b) concerning her cab fare. As § 87(2)(b) was leaving, § 87(2)(b) grabbed her sleeve and § 87(2)(b) informed him that she was going to call the police and left his apartment.

§ 87(2)(b) looked out his window and saw PO Andrew Yurkiw and PO Joseph Solomito arrive in a patrol car and speak with § 87(2)(b) who was outside. After two minutes, two additional officers arrived in a second patrol car. These officers could not be identified. § 87(2)(b) could hear the officers entering the building downstairs.

§ 87(2)(b) heard § 87(2)(b) tell the officers that he had choked her and heard the officers ask § 87(2)(b) whether he had guns or drugs in his apartment. § 87(2)(b) told the officers that he did not. An officer knocked on § 87(2)(b) door and told him that he wanted to speak to him about § 87(2)(b). § 87(2)(b) informed the officer that he would not open the door unless a supervisor was present. § 87(2)(b) refused multiple requests to open the door.

PO Amber LaGrandier, asked § 87(2)(b) to open the door and § 87(2)(b) insisted that the officers call a supervisor. At this time, Lt. Thomas Passolo, kicked the door three times and entered the apartment. The lock on § 87(2)(b) door was broken as a result of the kicks. Lt. Passolo entered the apartment followed by PO Yurkiw, PO Solomito and the two unidentified officers. PO Yurkiw and PO Solomito had their guns drawn and holstered them as they entered the apartment behind Lt. Passolo.

Lt. Passolo moved into the apartment and grabbed § 87(2)(b) around the waist and pushed him backwards while PO Yurkiw and PO Solomito grabbed § 87(2)(b) arms and legs. The three officers lifted § 87(2)(b) off of the ground and pushed him to the ground causing the back of his head to hit the ground. § 87(2)(b) was turned over onto his stomach once he was on the ground and Lt. Passolo positioned himself on top of § 87(2)(b).

§ 87(2)(b) stated that he was stiffening his arms at his sides to prevent the officers from moving them. § 87(2)(b) stated that he did this because he did not know that officers were attempting to handcuff him. One of the unidentified officers approached § 87(2)(b) and punched him three times, in his right eye, on his right cheek, and on his jaw. § 87(2)(b) continued to struggle with the officers holding his arms by stiffening them to his side.

At this time, § 87(2)(b) raised his arms so that he could be handcuffed. PO LaGrandier placed § 87(2)(b) in handcuffs and PO Yurkiw and PO Solomito lifted him to his feet. Lt. Passolo opened and looked into a closet in the apartment and PO Yurkiw looked through a second closet. § 87(2)(b) did not see any officers remove items from the closets.

§ 87(2)(b) was transported to the stationhouse by PO Yurkiw and PO Solomito. As § 87(2)(b) was being transported to the stationhouse, he asked to see a doctor because he was in pain. One of the officers told § 87(2)(b) that he did not need medical treatment. § 87(2)(b) could not tell which officer spoke. § 87(2)(b) did not seek medical treatment after the incident.

For additional details of § 87(2)(b) statement, see encl. 5A-F.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) - old whitewoman.

CCRB Testimony

On March 27, 2014, § 87(2)(b) provided a telephone statement to the CCRB (encl. 6A-B).

On February 15, 2014, at 7:42 p.m., § 87(2)(b) was at § 87(2)(b) apartment at § 87(2)(b). § 87(2)(b) and § 87(2)(b) had an argument over money as she was leaving and § 87(2)(b) threw a shoe at her which hit her head. § 87(2)(b) fell to her knees and § 87(2)(b) placed his arms around her throat and squeezed. § 87(2)(b) ran out and called the police.

§ 87(2)(b) stepped outside and observed PO LaGrandier, PO Alex Molina and a third unidentified officer arrive in a marked patrol car. The officers approached § 87(2)(b) and asked her about the incident with § 87(2)(b). The officers asked § 87(2)(b) if § 87(2)(b) had any weapons or drugs in his apartment and she told them that he did not.

§ 87(2)(b) entered the building with the officers who went upstairs while she remained on the bottom landing. The officers asked § 87(2)(b) to open his apartment door in a courteous manner and § 87(2)(b) refused to do so. § 87(2)(b) used profanity and told the officers that he would not open the door while insisting that § 87(2)(b) did not have any signs of strangulation.

At this time, Lt. Passolo and Lt. Abbassi arrived and attempted to speak to § 87(2)(b). § 87(2)(b) heard an officer inform § 87(2)(b) that his door would be kicked in followed by the sound of the door being forced open by two kicks.

After one minute, § 87(2)(b) was brought downstairs in handcuffs. § 87(2)(b) did not observe any injuries on § 87(2)(b) as he was brought outside. § 87(2)(b) did not make any comment that suggested that he was in pain. § 87(2)(b) missed appointments at the CCRB on March 21, 2014, and April 14, 2014.

NYPD Statements:

Subject Officer: LT. THOMAS PASSOLO

- *Lt. Thomas Passolo of the 81st Precinct, § 87(2)(b) old at the time of the incident, is a white male who § 87(2)(b) is bald and brown eyes. On February 15, 2014, Lt. Passolo worked in plainclothes from 2 p.m. to 10:45 p.m.*

Memo Book Entry

Lt. Passolo did not prepare a memo book entry for this incident (encl. 7A-B).

CCRB Testimony

On July 16, 2014, Lt. Passolo was interviewed at the CCRB (encl. 7C-E).

On February 15, 2014, at 8p.m., Lt. Passolo and Lt. Abbassi received a radio run requesting that a supervisor report to § 87(2)(b) in Brooklyn. Lt. Passolo entered the building and encountered PO LaGrandier who informed him that § 87(2)(b) had been strangled by her boyfriend, § 87(2)(b). Lt. Passolo did not have any additional interaction with PO LaGrandier. Lt. Passolo did not speak to § 87(2)(b) at any point during the incident.

At this time, Lt. Passolo went upstairs and approached the door to § 87(2)(b) apartment. Lt. Passolo knocked once on the door, identified himself and asked § 87(2)(b) to open the door. § 87(2)(b) said he would not open the door. After fifteen seconds, Lt. Passolo kicked the door once, causing it to open inward. The reason for forcibly entering the apartment was because § 87(2)(b) had committed a crime for which there was a live victim and because he would not open the door. Lt. Passolo had not obtained a warrant prior to opening the door but believed that his actions were in accordance with the emergency exception rule for warrantless entries.

Lt. Passolo drew his firearm and entered the apartment first. Lt. Passolo feared for his safety at the time of entry because he did not know whether or not § 87(2)(b) was armed. Lt. Passolo holstered his weapon after he walked into the apartment and saw that § 87(2)(b) was not armed. Lt. Passolo told § 87(2)(b) to turn around and place his hands behind his back and § 87(2)(b) complied. Lt. Passolo approached § 87(2)(b) and placed his hands on his wrists with the intention of handcuffing him. At this time, § 87(2)(b) began to raise his arms up and forward in an attempt to evade Lt. Passolo's handcuffs.

Lt. Passolo stepped aside and permitted the two to three officers who entered behind him to apprehend § 87(2)(b). The two officers took § 87(2)(b) by each arm and forced him to the

ground by pulling him forward. § 87(2)(b) was brought down face first and continued to resist arrest by stiffening his arms beneath his body as officers attempted to place him in handcuffs.

The two to three officers who struggled with § 87(2)(b) managed to pull his arms behind his back and one of the officers placed him in handcuffs. After § 87(2)(b) was placed in handcuffs, the officers lifted him from the ground and into a standing position. Lt. Passolo did not see any officers strike § 87(2)(b) face and Lt. Passolo did not do this himself.

Lt. Passolo instructed officers to look around the apartment to see if there was anyone else inside. Lt. Passolo did not know prior to entering whether there was another person in the apartment. Lt. Passolo did not speak to any person aside from PO LaGrandier while on scene and she did not say that there was a person or contraband inside the apartment. Lt. Passolo did not believe that § 87(2)(b) might escape his apartment at the time of entry.

For additional details of Lt. Passolo's statement, see encl. 7C-E.

Subject Officer: PO ANDREW YURKIW

- *PO Andrew Yurki of the 81st Precinct, § 87(2)(b)-old at the time of the incident, is a white male who § 87(2)(b) has a shaved head and blue eyes. On February 15, 2014, PO Yurkiw was working in uniform from 3 p.m. to 11:35 p.m. with PO Joseph Solomito and was assigned to a marked RMP to patrol sector J.*

Memo Book Entry

See enclosed (encl. 8A-C).

CCRB Testimony

On September 5, 2014, PO Yurkiw was interviewed at the CCRB (8D-F).

On February 15, 2014, at 7:42 p.m., PO Yurkiw received a radio run for an assault at § 87(2)(b) in Brooklyn. PO Yurkiw and PO Solomito responded to the location in order to provide backup for PO LaGrandier. When PO Yurkiw arrived, he observed § 87(2)(b) standing outside of the building. PO LaGrandier and PO Molina arrived at the same time and the four officers approached § 87(2)(b) together.

§ 87(2)(b) informed the officers that § 87(2)(b) had strangled her and taken her money. The officers approached § 87(2)(b) door and PO LaGrandier knocked and identified herself. PO LaGrandier asked § 87(2)(b) to open the door and he refused. There was no concern at this time that § 87(2)(b) might be armed and there was no belief that there might be another person in the apartment with § 87(2)(b). While he was downstairs, PO Yurkiw heard PO LaGrandier make a request for supervision but could not recall there being a reason given with the request. PO Yurkiw never heard PO LaGrandier express any concerns about entering the apartment.

PO Yurkiw observed Lt. Passolo arrive and go upstairs while he was standing on the staircase near § 87(2)(b). Lt. Passolo did not speak with § 87(2)(b) before proceeding upstairs. PO Yurkiw heard the sound of a door opening upstairs but stated that this was not loud. PO Yurkiw did not hear officers' issue commands as they entered and did not hear § 87(2)(b) say anything.

PO Yurkiw went upstairs to assist in apprehending § 87(2)(b) and did not observe any damage to § 87(2)(b) door as he entered the room. PO Yurkiw moved to secure § 87(2)(b) legs which he did by placing each of his arms on each of § 87(2)(b) calves. PO Yurkiw did this so that § 87(2)(b) could not kick his legs. PO Yurkiw stated that he was not concerned for his safety when he entered the apartment and that he did not draw his weapon and did not see other officers draw their weapons. § 87(2)(b) did not complain of injuries or request medical treatment from him or his partner while he was being transported back to the stationhouse.

For additional details of PO Yurkiw's statement, see encl. 8D-F.

Subject Officer: PO JOSEPH SOLOMITO

- *PO Joseph Solomito of the 81st Precinct, § 87(2)(b) -old at the time of the incident, is a white male who § 87(2)(b) has brown hair and hazel eyes. On February 15, 2014, PO Solomito was working in uniform with PO Andrew Yurkiw out of marked RMP 4822 and was assigned to patrol sector 81J from 3 p.m. to 11:35 p.m.*

Memo Book Entry

See enclosed (encl. 9A-D).

CCRB Testimony

On August 6, 2014, PO Solomito was interviewed at the CCRB (encl. 9E-F).

On February 15, 2014, at 7:42 p.m., PO Solomito received a radio run for a domestic incident at § 87(2)(b) apartment at § 87(2)(b) in Brooklyn.. The only other officers on scene at this time were PO LaGrandier and PO Molina, who were inside of the building. PO Solomito did not go up to the apartment because there were enough officers inside.

PO Solomito stated that § 87(2)(b) window had a fire escape but that he was not worried about § 87(2)(b) attempting to flee. § 87(2)(b) came outside two minutes later and PO Solomito asked her to identify § 87(2)(b). § 87(2)(b) looked at § 87(2)(b) and confirmed that he had choked her. PO Solomito could not recall officers having concerns about there being other people in the apartment at the time of the incident. PO Solomito heard PO LaGrandier request supervision over the radio and Lt. Passolo and Lt. Abbassi arrived five minutes later and proceeded straight into the building.

Officers gained access to § 87(2)(b) apartment shortly after the lieutenants arrived but PO Solomito did not know how access was gained. PO Solomito entered the building and took § 87(2)(b) who was handcuffed, from PO LaGrandier and PO Molina who were holding him in the hallway. PO Solomito transported § 87(2)(b) back to the stationhouse with PO Yurkiw. § 87(2)(b) never requested medical attention while he was with PO Solomito.

For additional details of PO Solomito's statement, see encl. 9D-F.

Witness Officer: PO AMBER LAGRANDIER

- *PO Amber LaGrandier of the 81st Precinct, § 87(2)(b) -old at the time of the incident, is a white female who § 87(2)(b) has brown hair and brown eyes. On February 15, 2014, PO LaGrandier was working in uniform as the domestic violence officer from 3 p.m. to 11:23 p.m. with PO Alex Molina. PO LaGrandier was in the recorder position of marked RMP number 3846.*

Arrest Report

§ 87(2)(b), § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Domestic Incident Report

On February 15, 2014, § 87(2)(b) was strangled by § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) did not have visible injuries but was removed for medical attention (encl. 10D-E).

Memo Book Entry

See enclosed (encl. 10F-H).

CCRB Statement

On May 7, 2014, PO LaGrandier was interviewed at the CCRB (encl. 10I-K)

On February 15, 2014, at 7:42 p.m., PO LaGrandier received a radio run for a domestic incident at § 87(2)(b) in Brooklyn. PO LaGrandier entered the building and encountered § 87(2)(b) downstairs. § 87(2)(b) informed PO LaGrandier that § 87(2)(b) had strangled her and PO LaGrandier observed redness on her neck. At this time, PO LaGrandier determined that § 87(2)(b) needed to be arrested because he committed a violent crime.

PO LaGrandier asked § 87(2)(b) if there was anything of concern in the apartment and she said that § 87(2)(b) may have had drugs. After speaking with § 87(2)(b) PO LaGrandier went upstairs to speak with § 87(2)(b) who was locked in his apartment. PO LaGrandier stated that there was no concern among the officers that § 87(2)(b) could be armed. PO LaGrandier asked § 87(2)(b) to step outside so they could speak and he refused.

PO LaGrandier spoke with § 87(2)(b) for ten minutes and asked him to open his door multiple times. At this time, PO LaGrandier called for a supervisor for the purpose of gaining entry into the apartment. Lt. Passolo and Lt. Abbassi arrived five minutes later. Neither lieutenant identified themselves to § 87(2)(b) upon arrival.

Lt. Passolo approached the apartment door and gained entry by kicking the door one time. Lt. Passolo did not announce himself to § 87(2)(b) before kicking the door and made his entry after hearing § 87(2)(b) refusal to open the door to officers on scene. Lt. Passolo's kick caused the lock on the door to break. Lt. Passolo entered the apartment first and walked directly to § 87(2)(b). Lt. Passolo was followed into the apartment by Lt. Abbassi and the other officers in the hallway. None of the officers drew their guns at any point during the incident.

Lt. Passolo put one of his hands on one of § 87(2)(b) arms and attempted to pull the arm behind § 87(2)(b) back. § 87(2)(b) recoiled when the lieutenant touched him and pulled his arms away. Lt. Passolo stepped aside and four officers moved forward and grabbed § 87(2)(b) by his arms. § 87(2)(b) was stumbling while the officers were trying to grab him and fell onto his knees. § 87(2)(b) was then pulled forward so that he was face-down on the ground. § 87(2)(b) continued to stiffen his arms and attempted to place them underneath himself. PO LaGrandier did not see any officer punch § 87(2)(b) at any point during his apprehension.

PO LaGrandier approached § 87(2)(b) with her handcuffs out. § 87(2)(b) hands were being held behind his back by two officers. PO LaGrandier placed the handcuffs on § 87(2)(b). PO LaGrandier picked § 87(2)(b) up and had him stand there until § 87(2)(b) could identify him as her attacker.

For additional details of PO LaGrandier's statement, see encl.10I-K.

Witness Officer: PO ALEX MOLINA

- *PO Alex Molina of the 81st Precinct is a § 87(2)(b)-old Hispanic male who § 87(2)(b) has black hair and brown eyes. On February 15, 2014, PO Molina was working a domestic violence assignment with PO Amber LaGrandier. PO Molina worked in uniform from 3 p.m. to 11:23 p.m. and was the operator of a marked RMP, number 3847.*

Memo Book

See enclosed (encl. 11A-B).

CCRB Testimony

On May 16, 2014, PO Molina was interviewed at the CCRB (encl. 11C-E).

On February 15, 2014, at 7:42 p.m., PO Molina responded to a domestic violence incident in progress at § 87(2)(b). PO Molina and PO LaGrandier approached § 87(2)(b) who was

standing on the bottom stair landing. § 87(2)(b) had red marks around her neck and told the officers that § 87(2)(b) had strangled her.

PO Molina asked § 87(2)(b) to open his door four times. § 87(2)(b) refused to open the door and replied in an aggressive tone. PO Molina stated that there was no concern for officer safety or reason to believe that § 87(2)(b) was armed. PO Molina stated that there was concern that § 87(2)(b) may flee because they had heard a window being opened.

The officers decided that they would need to enter the apartment to make an arrest and PO LaGrandier called for a supervisor. A supervisor was needed to determine whether officers could enter the location. PO Molina saw that the officers outside the door had gained entry to the apartment but he did not see how this had been accomplished. PO Molina did not hear any sounds that were consistent with the door being forcibly opened.

PO Molina was the last officer to enter the apartment and did not draw his gun or observe any damage to the door as he entered. Lt. Passolo and his partner were standing to the side of the room and four officers who had arrived on scene before him were attempting to restrain § 87(2)(b). § 87(2)(b) was moving his arms in an attempt to evade the officers. § 87(2)(b) fell to the ground but PO Molina did not see any officers touching him when he fell.

After § 87(2)(b) was on the ground, PO Molina moved forward and pulled § 87(2)(b) right hand out from beneath him and pulled it behind him. A second officer pulled out § 87(2)(b) left hand. PO LaGrandier came forward and placed § 87(2)(b) in handcuffs. Lt. Passolo instructed the officers to examine the studio apartment to see if there was anyone else in the room. PO Molina did not hear any comments made by any person up until this point that suggested that there were other people in the apartment.

For additional details of PO Molina's statement, see encl. 11C-E.

NYPD Documents

Complaint Report

§ 87(2)(a) 160.50

Event Information

At 7:42:45 p.m., on February 15, 2014, § 87(2)(b) called 911 from patrol area 81E and reported that she had been choked and robbed by § 87(2)(b). Officers responded at 7:47:01 p.m. The incident was given a disposition of 'family offense arrest made' at 11:30:31 p.m. (encl. 12C).

Arrest Photograph

§ 87(2)(b) has no visible injuries in his arrest photograph (encl. 12F).

81st Precinct Desk Unit Copy of Roll Call

See enclosed (encl. 12G-Q).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 6, 2014, with regard to the incident (13A).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

§ 87(2)(b) has filed the following CCRB complaints (encl. 3A):

- § 87(2)(b)
[REDACTED]
[REDACTED]

Subject Officers CCRB History

- Lt. Passolo has been a member of the service for 15 years and there have been four substantiated CCRB allegations against him (encl. 2A).
 - In CCRB case number 201212803, a strip search was substantiated. The NYPD does not have a disposition for this case.
 - In CCRB case number 201306080, a residence entry, an authorized entry and a threat of arrest were substantiated. The NYPD has no disposition for this case.
- PO Yurkiw has been a member of the service for two years and this is the first CCRB complaint made against him (encl. 2B).
- PO Solomito has been a member of the service for two years and this is the first CCRB complaint made against him (encl. 2C).

Conclusion

Allegations Not Pleaded

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Identification of Subject Officers

§ 87(2)(b) stated that the officer who kicked his door in was a white male officer with a bald head. Lt. Passolo, a white male with a bald head, confirmed that he kicked in the door and was the first officer to enter the apartment. § 87(2)(g)

§ 87(2)(b) described one of the officers who entered his apartment with their weapons drawn as a white male, 6'2" tall, with a bald head in his late thirties and 230 pounds. PO Yurkiw was the only officer on scene who matched this description. § 87(2)(b) described the second officer to enter with his weapon drawn as a white male with brown hair and stated that this officer arrived with PO Yurkiw. PO Solomito was PO Yurkiw's partner and is a white male with brown hair.

§ 87(2)(g)

§ 87(2)(b) described the officer who allegedly struck him as a white male in his late-twenties, 5'6" tall, with a medium build and brown hair. None of the officers identified for the investigation fit this description. § 87(2)(g)

§ 87(2)(b) alleged that PO Yurkiw and PO Solomito were transporting him to the stationhouse when he requested medical attention. Both officers confirmed transporting § 87(2)(b)

§ 87(2)(b) after the incident. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Lt. Thomas Passolo entered and searched § 87(2)(b) in Brooklyn.

Allegation B – Lt. Thomas Passolo damaged § 87(2)(b) property.

It is undisputed that Lt. Passolo kicked open § 87(2)(b) door, causing the locks to break, and entered his apartment without a warrant.

Lt. Passolo stated that he did not speak with § 87(2)(b) or other officers on the scene about conditions inside of the apartment before he kicked open the door. Additionally, Lt. Passolo stated that his reasons for entering the apartment were § 87(2)(b) alleged violent crime, his non-compliance in opening the door and the presence of a live witness.

PO LaGrandier confirmed that Lt. Passolo kicked open the door and that there was resulting damage to the lock. PO LaGrandier stated that there was no concern among the officers that § 87(2)(b) might be armed. PO Molina, PO Solomito and PO Yurkiw stated that there was no indication that there was a person in the apartment with § 87(2)(b).

The courts utilize a six-part test to determine the presence of an exigent circumstance in evaluating whether a warrantless entry is justified: “(1) the gravity or violent nature of the crime with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause...to believe the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.” People v. McBride, 14. N.Y. 3d 440 (2010) (encl. 1A-G).

The court utilizes a three-part test to determine the presence of an emergency exception to warrantless entries: “(1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life and property; (2) The search must not be primarily motivated by intent to arrest and seize evidence’ (3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched.” People v. Dallas 8 N.Y.3d 890 (2007) (encl. 1H-I).

Lt. Passolo stated that he did not confer with officers on scene prior to forcibly entering § 87(2)(b) apartment. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations A and B be closed as substantiated.**

Allegation C – Abuse of Authority: PO Andrew Yurkiw drew his gun.

Allegation D – Abuse of Authority: PO Joseph Solomito drew his gun.

§ 87(2)(b) alleged that PO Yurkiw and PO Solomito entered his apartment with their weapons drawn and holstered them before apprehending him. PO Yurkiw denied this allegation, stating that he entered the apartment after § 87(2)(b) was already on the ground and never withdrew his weapon. PO Solomito also denied this allegation, stating that he was outside during the apprehension and never drew his weapon during this incident. PO Molina and PO LaGrandier denied seeing any officer draw a weapon during the incident and Lt. Passolo stated that he could not recall whether any other officer drew their weapon. § 87(2)(b) was not upstairs at the time of entry and would not have seen whether an officer drew their weapon at the time of entry.

§ 87(2)(g)

it is recommended that **Allegations C and D be closed as unsubstantiated.**

Allegation E – Force: An officer used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that an officer punched him three times in his face while he was being apprehended. § 87(2)(b) admitted to stiffening his arms after he had been placed on the ground and stated that he raised his arms to be handcuffed after he was struck. Lt. Passolo stated that he stood to the side while § 87(2)(b) was being apprehended and did not see any officer strike him. PO Yurkiw stated that he secured § 87(2)(b) legs and did not see any officer strike § 87(2)(b). PO Solomito stated that he was outside and took no part in apprehending § 87(2)(b). PO LaGrandier corroborated § 87(2)(b) assertion that her only part in his apprehension was placing him in handcuffs after he had been secured. PO LaGrandier did not see any officer strike § 87(2)(b). PO Molina stated that he helped secure § 87(2)(b) arms but that he did not strike § 87(2)(b) or see any other officer do this.

Patrol Guide procedure 203-11 authorizes an officer to use the minimum amount of force necessary to overcome resistance to effect an arrest (encl. 1J-L).

§ 87(2)(g)

it is recommended that **Allegation E be closed as exonerated.**

Allegation F – Abuse of Authority: PO Andrew Yurkiw did not obtain medical treatment for § 87(2)(b)

Allegation G – Abuse of Authority: PO Joseph Solomito did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that he requested medical attention from PO Solomito and PO Yurkiw as he was being transported back to the stationhouse. § 87(2)(b) never heard § 87(2)(b) request medical treatment while being brought out of the apartment. Lt. Passolo, PO LaGrandier and PO Molina did not hear § 87(2)(b) request medical treatment and did not help transport § 87(2)(b) back to the stationhouse. PO Solomito denied hearing § 87(2)(b) request medical treatment at any point during the incident and PO Yurkiw corroborated PO Solomito's account. Both officers stated that they did not hear § 87(2)(b) request medical treatment while he was being transported.

§ 87(2)(g)

it is recommended that **Allegations F and G be closed as unsubstantiated.**

§ 87(4-b) § 87(2)(g)

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date